

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 57
JUDICIAL OFFICER: J. YAMAMOTO
HEARING DATE: 05/27/2026

The tentative ruling will become the Court's FINAL ruling unless by 4:00 p.m. the Court day before the hearing Counsel or self-represented parties email the department (no phone or fax) to request argument and specify the issues to be argued. Parties requesting argument must also similarly advise all other affected counsel or self-represented parties no later than 4:00 p.m. that same day. Failure to timely advise the Court and other affected participants will preclude any party from arguing the matter (Local Rule 3.43(2)).

The Court waives notice of parties appearing remotely via ZOOM (no CourtCall allowed). Parties do not need to file a Notice of Remote Appearance, but must serve the notice as set forth in Rule 3.672 unless the parties have stipulated to waive notice.

<https://www.courts.ca.gov/documents/ra010.pdf>

Department 57's email address is: dept57@contracosta.courts.ca.gov

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Discovery Law & Motion

1. 10:30 AM CASE NUMBER: C23-02085
CASE NAME: VLADYSLAV TSYBENKO VS. OLEXIY BUYADGIE
*HEARING ON MOTION FOR DISCOVERY CONTINUED FROM 04.29.26
FILED BY:
TENTATIVE RULING:

There being no opposition to the tentative ruling of 2/13/2026, the tentative ruling became the order of the court.

Motion for reconsideration was filed on 3/23/2026 which was deemed timely after arguments heard on the matter on 4/29/2026 by both parties who were represented by counsel.

Motion for reconsideration is granted and the 2/13/2026 order deeming the Request for Admissions, Set One admitted as to Defendant OLEXIY BUYADGIE is denied. The Court orders that Defendant respond to Plaintiff's Request for Admission, Set One, within five (5) days of this order.

Sanctions in the amount of \$ 2,760 are awarded to Plaintiff to be paid by defendant – OLEXIY BUYADGIE within 20 days of service of this order.

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2. 10:30 AM CASE NUMBER: C24-03363

CASE NAME: LETITICA BALTAYAN VS. SHAHID ALI

***HEARING ON MOTION FOR DISCOVERY COMPEL ROGER BALTAYAN'S RESPONSES TO REQUEST FOR PROD OF DOCUMENTS**

FILED BY: ALI, SHAHID

TENTATIVE RULING:

Defendant's motion to compel Plaintiffs – ROGER BALTAYAN and LETICIA BALTAYAN to provide responses to requests for discovery is granted.

Considering the Defendant's declaration, the court orders thirty days to comply with this order. Plaintiffs shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Plaintiff shall comply with Defendant's: Requests for Production of Documents – Set One.

Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order.

The court further orders monetary sanctions against Plaintiffs in the amount of \$ 1,000 to be paid by Plaintiff- ROGER BALTAYAN and \$ 1,500 to be paid by Plaintiff LETICIA BALTAYAN to Defendants within 20 days of entry of this order.

3. 10:30 AM CASE NUMBER: C24-03363

CASE NAME: LETITICA BALTAYAN VS. SHAHID ALI

***HEARING ON MOTION FOR DISCOVERY COMPEL LETICIA BALTAYAN RESPONSES TO REQUEST FOR PROD OF DOCS**

FILED BY: ALI, SHAHID

TENTATIVE RULING:

Defendant's motion to compel Plaintiffs – ROGER BALTAYAN and LETICIA BALTAYAN to provide responses to requests for discovery is granted.

Considering the Defendant's declaration, the court orders thirty days to comply with this order. Plaintiffs shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Plaintiff shall comply with Defendant's: Requests for Production of Documents – Set One.

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Plaintiff shall serve code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order.

The court further orders monetary sanctions against Plaintiffs in the amount of \$ 1,000 to be paid by Plaintiff- ROGER BALTAYAN and \$ 1,500 to be paid by Plaintiff LETICIA BALTAYAN to Defendants within 20 days of entry of this order.